

Criminal Misc.No.5104-B/2014

Tariq Mehmood

The State etc.

16.05.2014. Mr.Muhammad Hanif Khan, Advocate.
Mr. Iftikhar ul Haq Chaudhary, APG with Nawaz, ASI.

The petitioner seeks post arrest bail in case FIR No.358 dated 06.05.2012 under Sections 302, 337-A(i), 337-F(i) PPC, registered at Police Station Millat Town, Faisalabad.

2. The role attributed to the petitioner in FIR is that he while armed with 12-bore gun, caused fire arm injury to the person of complainant, who succumbed to the injuries. Hence, this case.

3. Learned counsel for the petitioner contends that there is delay of two hours in lodging of FIR; that petitioner is falsely roped by the complainant in the instant case; that affidavits of mother and brother of deceased available on record are in favour of petitioner; that petitioner has no shady past, therefore, petitioner is entitled to the relief as claimed for.

4. The learned Law Officer has vehemently opposed the petition by arguing that sufficient material is available on record which connects the petitioner with the commission of offence; further adds that recovery has been effected from the petitioner; further submits that offence is of heinous nature, therefore, petitioner is not entitled to the concession of bail.

5. Arguments heard and record perused.

6. The F.I.R. was lodged promptly wherein allegation of causing fire arm injury to Khushal Khan-deceased with the intention to commit his murder is specifically attributed to the petitioner. The petitioner and Khushal Khan-deceased were real brothers. The fatal injury caused to the deceased is attributed to the petitioner. The ocular account got support from medical evidence. From the place of incident, blood stained earth and crime empties were taken into possession by the

Investigating officer on 06.05.2012. On the same day, all prosecution witnesses made their statements before the Investigating Officer including Khadija Bibi (mother of petitioner and deceased) and Khalid Mehmood (brother of petitioner and deceased). Later on, on 15.03.2014 they filed their affidavits with a new story of alleged occurrence, which is of no consequence, as affidavits of both PWs can not be considered as evidence at bail stage. Reliance is placed on the cases reported as “**Mst.Bashiran Bibi v. Nisar Ahmad Khan and others**” (PLD 1990 SC 83) and “**Naseer Ahmad v. The State**” (PLD 1997 SC 347). During the course of investigation, the petitioner was found guilty of the offence. It has become a trend that just to save the skin of near and dear ones, sworn affidavits are tendered by taking a somersault. Furthermore, Mst.Khadija Bibi and Khalid Mehmood are not only the witnesses of the alleged occurrence, as complainant, Muhammad Shahbaz-injured witness and three other witnesses have fully implicated the petitioner by assigning a specific role. It was a brutal murder, committed in broad day light. No case for bail is made out.

6. Resultantly, petition in hand stands **dismissed**.

(Aalia Neelum)
Judge

Approved for reporting.